

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT
Crl. Revision No.50 of 2026

The State.

Versus

Qadeer Ahmad.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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10.03.2026 Jam Waheed Ahmad Bobra, Deputy District Public Prosecutor.

Through this petition, the State has assailed the order dated 29.01.2026, passed by the learned Additional Sessions Judge/Judge Special Court Anti Rape Act, Rahim Yar Khan, whereby he had directed that the statement of Mst. Sawera Khan shall be recorded with the assistance of her mother (the complainant of the case F.I.R No.844 of 2025 registered at Police Station City A-Division, District Rahim Yar Khan), after an application had been submitted by the learned Prosecutor concerned that the statement of Mst. Sawera Khan be recorded through an Expert as Mst. Sawera Khan was a “special child” who did not have full capacity of speech.

2. The brief facts of the case, leading up to the filing of the instant petition, are that after the registration of the case F.I.R No.844 of 2025 at Police Station City A-Division, District Rahim Yar Khan on the complaint of Mst. Zubaida, the statement of the victim namely Mst. Sawera Khan was also recorded during the investigation of the case,who, in her statement, narrated the incident as it had happened and thereafter, the report under section 173 Cr.P.C. was submitted and the charge was framed by the learned trial court as against the accused, who denied the same and claimed trial. After summoning of the prosecution witnesses, initially, the statements of

the complainant of the case and another witness were recorded, who both resiled from their earlier statements upon which they were declared to be hostile and on the same day, i.e, 19.01.2026, the learned Prosecutor concerned also submitted an application seeking the examination of Mst. Sawera Khan, through an Expert as according to that application, Mst. Sawera Khan was not competent to make a statement; and that application of the learned Prosecutor concerned was allowed vide order dated 29.01.2026 in the manner that, though it was stated that the statement of Mst. Sawera Khan shall be recorded through another person; however, the learned trial court directed that the said person would be the complainant of the case herself. The learned prosecutor thereafter moved another application in the same terms as the earlier but seeking calling of an expert to record the statement of Mst. Sawera Khan, instead of the complainant of the case, however that application was also dismissed.

2. The learned Deputy District Public Prosecutor has submitted that as already, the complainant of the case has resiled from her previous statement, therefore, there was a possibility that she would not narrate truthfully what Mst. Sawera Khan would state, damaging the prosecution case, therefore, the part of the order dated 29.01.2026 passed by the learned trial court whereby the learned trial court had directed that the statement of Mst. Sawera Khan be recorded through her mother, be set-aside.

3. I have heard the learned Deputy District Public Prosecutor and perused the record with his able assistance.

4. It evinces from the perusal of the record that after the registration of the case F.I.R No.844 of 2025 at Police Station City A-Division, District Rahim Yar Khan on the complaint of Mst. Zubaida, the statement of the

victim namely Mst. Sawera Khan was also recorded during the investigation of the case, who, in her statement, narrated the incident as it had happened and thereafter, the report under section 173 Cr.P.C. was submitted and the charge was framed by the learned trial court as against the accused, who denied the same and claimed trial. After summoning of the prosecution witnesses, initially, the statements of the complainant of the case and another witness were recorded, who both resiled from their earlier statements upon which they were declared to be hostile and on the same day, i.e, 19.01.2026, the learned Prosecutor concerned also submitted an application seeking the examination of Mst. Sawera Khan, through an Expert as according to that application, Mst. Sawera Khan was not competent to make a statement; and that application of the learned Prosecutor concerned was allowed vide order dated 29.01.2026 in the manner that, though it was stated that the statement of Mst. Sawera Khan shall be recorded through another person; however, the learned trial court directed that the said person would be the complainant of the case herself. The learned prosecutor thereafter moved another application in the same terms as the earlier but seeking calling of an expert to record the statement of Mst. Sawera Khan , instead of the complainant of the case , however that application was also dismissed. As mentioned above, during the course of investigation of the case, the statement under section 161 Cr.P.C. of Mst. Sawera Khan was recorded and it was not recorded with the help of any Expert, denoting the fact that Mst. Sawera Khan was competent enough to make an intelligible statement, containing all the relevant facts during the investigation of the case and which ***statement was understood by the Investigating Officer of the case and also recorded.*** When Mst. Sawera Khan herself had made a statement according to the

Investigating Officer of the case, which statement was recorded under section 161 Cr.P.C., then, why the learned Prosecutor submitted an application casting a doubt over the competence of Mst. Sawera Khan to make an intelligible statement before the learned trial court, has not been explained. There was no necessity for the learned Prosecutor to have made such an application before the learned trial court for the recording of the statement of Mst. Sawera Khan through an Expert as there was no basis for the same and it was always the case of the prosecution itself that Mst. Sawera Khan was competent to make a statement and also indeed had made such a statement during the investigation of the case which was recorded, **without the assistance of any Expert**, under section 161 Cr.P.C, therefore, not only the application as submitted by the learned Prosecutor was pre-emptive in nature and unnecessary but the acceptance of the said application in the manner that the learned trial court observed that the statement of Mst. Sawera Khan be recorded through her mother, was also without basis for the simple reason that without testing the competency of Mst. Sawera Khan, the learned trial court came to the conclusion that she was unable to make an intelligible statement before the court. Though this decision of the learned trial court regarding the competency of Mst. Sawera Khan was initiated by the application as submitted by the learned Prosecutor, however, still it was the duty of the learned trial court to have decided whether Mst. Sawera Khan was competent to make an intelligible statement or not. The learned trial court should have tested the capacity of Mst. Sawera Khan as required under the law and should not have passed any order prior to coming to a conclusion in this regard.

5. The upshot of the above discussion is that this petition is **disposed of** in the terms that the learned trial

court shall firstly examine the competence of Mst. Sawera Khan regarding her capacity to make a statement before the learned trial court and if the learned trial court comes to the conclusion that she cannot make a statement and her statement needs to be recorded through another person, who can understand Mst. Sawera Khan, then it shall decide the mode and manner in which her statement is to be recorded and if the learned trial court comes to the conclusion that Mst. Sawera Khan can make a statement which can be understood and recorded by the learned trial court , then obviously, the learned trial court shall proceed to record the statement of Mst. Sawera Khan.

6. The Office is directed to transmit a copy of this order to the learned trial court for information and proceeding further with the trial of the case in the light of the observations made by this Court hereinabove.

(SADIQ MAHMUD KHURRAM)
JUDGE

T.M.Alvi/

Approved for Reporting

Judge